

Data Processing Addendum And Cross-Border Transfer Terms

Apex DataWorks Ltd. processor terms for HR, CRM, marketing, support, and analytics data

Synthetic legal-style test document for agent evaluation. Not legal advice. No real parties.

Processing Roles

Customer acts as controller for personal data submitted to the services. Apex DataWorks Ltd. acts as processor except for account administration, billing, security monitoring, sanctions screening, and legal compliance records where it acts as independent controller.

Categories Of Data

- Employee data: names, work email, department, manager, role, location, approval authority, support ticket text, access logs, and training completion records.
- Customer and prospect data: names, email addresses, phone numbers, CRM opportunity notes, campaign membership, website interaction events, consent status, and customer support history.
- Supplier data: vendor contacts, tax identifiers, onboarding questionnaires, insurance certificates, audit findings, beneficial ownership declarations, and contract metadata.
- Sensitive data is not expected, but free-text ticket fields may accidentally include health, financial, or government identifier data. Provider must apply detection, redaction, and escalation procedures.

Processor Obligations

- Provider shall process personal data only on documented instructions and shall immediately notify Customer if an instruction appears unlawful.
- Provider shall ensure personnel confidentiality, minimum necessary access, background checks for privileged operators, and annual privacy training.
- Provider shall support data subject requests by locating, exporting, deleting, or restricting personal data within 15 business days of a verified request.

Subprocessors

Provider may use the subprocessors listed in Schedule 2 for hosting, logging, support, backup, and email delivery. Provider must provide 30 days prior notice before adding or replacing a material subprocessor. Customer may object on reasonable privacy, security, or regulatory grounds.

Schedule 2: Cloud hosting - Ireland and United States - infrastructure operations - encrypted storage and compute.

Schedule 2: Support desk - European Union - customer support tickets - access by named support staff only.

Schedule 2: Email delivery - United States - transactional notifications - no message body analytics.

Cross-Border Transfers

For transfers from jurisdictions requiring safeguards, the parties incorporate the applicable standard contractual clauses, UK addendum where applicable, and transfer impact assessment controls. Provider shall not transfer regulated data to a restricted jurisdiction without prior written approval.

Security Measures

- Encryption at rest and in transit, vulnerability management, malware protection, centralized logging, production change control, and incident response playbooks are mandatory.
- Privileged access requires ticketed approval, time-bound elevation, MFA, session logging, and manager review.

Deletion And Return

Upon termination or written instruction, Provider shall return data in JSON, CSV, and native attachment format, then delete active systems within 45 days and backups within 180 days. Provider shall certify deletion except for records retained by law.

AI And Automated Processing

Customer personal data shall not be used for model training, fine-tuning, benchmark generation, or service improvement without a separate signed opt-in. Automated summaries remain assistive and may not be treated as final employment, credit, healthcare, or legal determinations.